



## ec-Work Mobile App Application Form 易做好手機應用程式申請表格

Note: This form is only applicable if your company is not applying or using AlphaHRMS.  
 本表格只適用於如貴公司沒有申請或使用創嶺人力資源管理系統。

### I. Company Details 公司資料

|                                                                                                       |                   |                                                |
|-------------------------------------------------------------------------------------------------------|-------------------|------------------------------------------------|
| Company Name (In English) 公司名稱 (以英文填寫)                                                                |                   | Business Registration Number 商業登記編號            |
| Contact Person (In English) 聯絡人 (以英文填寫)<br>Name 姓名 [ ] Mr.先生 [ ] Ms.女士                                |                   | Position 職位                                    |
| Address (In English) 地址 (以英文填寫)                                                                       |                   |                                                |
| Email Address 電郵地址                                                                                    | Phone Number 電話號碼 | Fax Number 傳真號碼                                |
| Name of your MPF/retirement scheme service provider ("service provider")<br>強積金／退休計劃服務供應商名稱 (「服務供應商」) |                   | Multiple providers 多間供應商<br>[ ] Yes 是 [ ] No 否 |

### II. Declaration 聲明

#### SOFTWARE AGREEMENT

Please read this software agreement carefully. By installing, copying, or otherwise using all or any portion of the ec-Work Mobile App and using website(s) or system(s) and facilities provided (together the "Software"), you acknowledge that you have read this agreement, understand it and agree all the terms and conditions of this agreement. You agree that this agreement is enforceable like any written negotiated agreement signed by you. If you do not agree, do not use the Software. The Software is developed by Asia Pacific Soft Limited ("APSoft"). This software agreement ("Agreement") is a legal agreement between APSOFT and you for the Software identified above, which includes computer software and associated media and printed materials (if any), and may include online or electronic documentation.

#### 軟件協議

下載安裝易做好手機應用程式及使用提供的網站或系統及設施 (統稱「軟件」) 前, 請先細閱本軟件協議 (下稱「協議」)。軟件一經下載、安裝、複製、使用全部或任何部分, 即表示閣下確認已閱讀、明白及接受本合約之全部條款。閣下同意本合約的執行效力如同閣下簽署的任何書面協議合約。如閣下不同意, 請勿使用本軟件。本軟件由亞太軟件有限公司 (「亞太軟件」) 開發。本合約乃閣下和亞太軟件之間就上述界定軟件訂立的法律協議, 軟件包括電腦軟件、相關媒體、印刷資料 (如有) 及可包括互聯網或電子化形式的文件。

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| <p>1. AGREEMENT. Upon our acceptance of your application, APSOFT grants you a non-exclusive right to use the Software.</p> <p>2. USE OF THE SOFTWARE. The Software is for your own use for the purpose of providing Mandatory Provident Fund and/or retirement scheme related administration functions and other communications for the employees of your company, but not for any other use. The use of the Software is subject to the condition precedent that you could follow the installation/maintenance process prescribed by APSOFT. You agree not to:</p> <p>(a) distribute, transfer, or provide any copy of the Software and related materials to others without APSOFT's consent;</p> <p>(b) rent, lease, or sell any copy of the Software and its output including reports to others;</p> <p>(c) modify, adapt, or translate the Software;</p> <p>(d) create derivative works based upon the Software;</p> <p>(e) reverse engineer, de-compile or disassemble the Software;</p> <p>(f) copy the Software (other than by making a copy solely for back-up or archival purposes); and</p> <p>(g) use any logo or graphics files contained in the Software.</p> <p>You also agree that by installing the ec-Work Mobile App:</p> <p>(i) you acknowledge your consent to be bound by the Terms of Use of the ec-Work Mobile App, as amended from time to time;</p> <p>(ii) the basic storage space and transmission bandwidth for the use of the ec-Work Mobile App is provided to you by APSOFT and APSOFT reserves the right to make changes from time to time without giving notice or reason;</p> <p>(iii) you may apply for additional storage space and/or transmission bandwidth from APSOFT at a charge to you; and</p> <p>(iv) your and/or your employees' data or information will only be retained in the cloud storage and our website(s) or system(s) for limited period of time as determined by APSOFT.</p> <p>3. CLOUD STORAGE. The ec-Work Mobile App uses cloud storage service provided by third party provider(s). APSOFT will not disclose, access or use your and/or your employees' data or information stored in the cloud storage (the "Content") except as necessary to maintain or provide services to you and/or your employees, or as necessary to comply with any law or a binding order of any governmental body, regulatory authority or court. You will ensure that the Content will not violate any applicable law. Neither APSOFT nor your MPF/retirement scheme service provider is responsible for any loss or</p> | <p>1. 協議。於亞太軟件接受閣下之申請後, 亞太軟件即給予閣下軟件的非專屬使用權。</p> <p>2. 使用軟件。本軟件乃供閣下為僱員提供強制性公積金及／或退休計劃相關行政工作及其他通訊時使用, 不可用作其他用途。閣下按照亞太軟件所訂明的步驟進行軟件之安裝／保養為使用本軟件之先決條件。</p> <p>閣下同意不會作出下列行為:</p> <p>(a) 未經亞太軟件同意的情況下, 分發、提供或轉讓本軟件及相關資料的副本予他人;</p> <p>(b) 出借、出租或售賣任何軟件的備份及其產物 (包括報告) 予他人;</p> <p>(c) 修改、編造或轉譯軟件;</p> <p>(d) 按軟件的全部或部分內容衍生製造其他程式;</p> <p>(e) 對軟件的原始程式碼進行還原工程、解編、反向組譯;</p> <p>(f) 複製軟件 (除非此副本乃作為備份或存檔之用); 和</p> <p>(g) 使用軟件內的任何標誌或圖像檔案。</p> <p>當閣下安裝易做好手機應用程式, 閣下亦同意下列行為:</p> <p>(i) 閣下承認同意接受易做好手機應用程式的使用條款及其不時的修訂;</p> <p>(ii) 閣下使用易做好手機應用程式之基本儲存空間及傳輸頻寬乃由亞太軟件提供予閣下, 亞太軟件保留可不時作出更改的權利而毋須作出通知或給予理由;</p> <p>(iii) 閣下可向亞太軟件申請額外儲存空間及／或傳輸頻寬, 而亞太軟件會向閣下收取費用; 和</p> <p>(iv) 閣下及／或閣下的僱員的資料或資訊只會保留於雲端儲存及亞太軟件的網站或系統內由亞太軟件決定的一段有限時間。</p> <p>3. 雲端儲存。易做好手機應用程式使用由第三方供應商提供的雲端儲存服務。亞太軟件將不會披露、存取或使用儲存在雲端儲存有關閣下及／或閣下的僱員的資料或資訊 (「內容」), 除非有需要為閣下及／或閣下的僱員維持或提供服務, 或有需要遵守任何法律或政府機構、監管機構或法院有約束力的指令。閣下將確保有關內容不違反任何適用的法</p> |
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4. **COLLECTION AND USE OF CUSTOMER DATA.** APSOFT will collect certain information about you when you use our website(s) or system(s). Such data includes both identifiable personal data such as contact person and contact phone number as well as non-identifiable personal information such as Sub-Scheme Number, existing version number, updating version number and IP address. Identifiable personal data will be collected when you apply for our services, or use our website(s) or system(s) for a service-related transaction. Non-identifiable personal information is gathered automatically when you use our website(s) or system(s) and being stored for use to provide services to you.
5. **TERMINATION.** Your rights under this Agreement terminate upon your discontinuation of the use of the Mandatory Provident Fund and/or retirement scheme service provided by your service provider. APSOFT reserves the right to terminate this Agreement at any time without notice if you fail to comply with the terms and conditions of this Agreement. In any event, as mentioned, you must stop using the Software and destroy all copies and relevant materials of the Software if required. APSOFT has the right to charge you HK\$150,000 for each company should you continue to use the Software after termination of this Agreement.
6. **COPYRIGHT.** APSOFT owns all title and copyrights (or otherwise has obtained consent, license or authorization for the use of the relevant title and copyrights) in and to the Software and any copies that you make. All title and intellectual property rights in and to the content which may be accessed through use of the Software is the property of APSOFT and may be protected by applicable copyright or other intellectual property laws and treaties. This Agreement does not grant you any intellectual property rights in or over the Software.
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8. **LIMIT OF LIABILITY.** APSOFT and/or your service provider shall have no liability for any damage or loss caused by or in connection with any failure of performance, error, omission, interruption, deletion, defect, delay in operation or transmission, computer virus/malware, communication line failure, theft or destruction or unauthorized access to, alteration of, or use of record, whether for a breach of contract, tortious behavior, negligence, or under any other cause of action as a result of the use of the Software (including the use of website(s) or system(s) and facilities provided by APSOFT), even if such possibility of damage or loss has been advised by APSOFT (or any third party).
9. **INDEMNIFICATION.** You will indemnify, hold harmless and keep APSOFT and your service provider indemnified against any claims and related costs associated with any action or demand that result from your use of the Software.
10. This Agreement supersedes all prior agreements, negotiations or other communications between the parties relating to the Software and is subject to change by APSOFT without notice.
11. **SERVICE CHARGE.** You agree to pay a license fee of HK\$1.00 upon notice by APSOFT in consideration for the use of the Software and APSOFT has the right to charge you a fee for providing any software changes and support services that are requested by you for your own circumstances.
12. **MISCELLANEOUS.** This Agreement will be governed by the Laws of the Hong Kong Special Administrative Region. APSOFT reserves the right to revise the terms and conditions of this Agreement from time to time as it may think fit and without notice.
13. In the event of any discrepancies or conflicts between the English version and the Chinese version of this Agreement, the English version shall prevail.

4. 收集及使用客戶資料。當閣下使用亞太軟件的網站或系統，亞太軟件將收集閣下的某些資料。該等資料包括可識別個人身份的資料如聯絡人及聯絡人電話，以及不可識別個人身份的資料如附屬計劃編號、現時使用版本、最新版本及網際協議地址。當閣下向亞太軟件申請服務，或使用亞太軟件的網站或系統作服務相關的交易時，可識別個人身份的資料將被收集。當閣下使用亞太軟件提供的網站或系統，不可識別個人身份的資料則自動被收集，並儲存作為閣下提供服務之用。
5. 協議終止。閣下一旦終止使用由閣下之服務供應商提供之強制性公積金及／或退休計劃服務時，在本協議之使用授權也一併終止。此外，倘若閣下未能遵守本合約的任何條款，亞太軟件保留隨時終止本合約的權利，而毋須另行通知。當協議終止時，閣下必須立即停止使用軟件並須銷毀所有軟件備份及相關資料。如合約終止後閣下仍然繼續使用軟件，亞太軟件有權就每一公司向閣下收取港幣十五萬元正。
6. 軟件版權。亞太軟件擁有軟件及任何閣下所做備份的全部產權及版權（或已獲得使用有關產權及版權之同意、許可或授權）。透過使用本軟件而獲取軟件內的資料及內容的所有權及知識產權乃屬於相關內容持有人的財產，這些產權可能受適用的版權或其他知識產權法律及條約所保障。本協議並沒有授予閣下任何本軟件的知識產權。
7. 保證事項。亞太軟件不保證軟件的內容、資訊、產品及／或服務可符合閣下的要求，或閣下能不受干擾、及時、安全或無誤地進入網址進行下載。亞太軟件亦不保證閣下於沿用我們的產品或服務時可能獲取的結果、或透過軟件而取得的資料或內容的準確性或可靠性，及在軟件或硬件出現的問題能得到修正。本軟件只會以「現況」及「尚存」的基礎提供予閣下。在不一致的硬件及軟件使用環境下，亞太軟件不會及不能對本軟件與閣下的電腦系統的兼容性作出任何保證。
8. 責任限制。亞太軟件及／或閣下之服務供應商毋須就任何因與失靈、誤差、遺漏、中斷、取消、缺失、運作或傳送延誤、電腦病毒／惡意軟件、線路中斷、盜竊、破損或非法進入、修改或運用記錄所造成的有關破壞或損失而承擔責任，不論是違約、侵權行為、疏忽、或因使用軟件（包括使用亞太軟件提供的網站或系統及設施）而進行之行為，儘管亞太軟件（或第三方）已闡明這些破壞或損失的可能性。
9. 賠償。閣下將就任何因閣下使用軟件而引發的爭辯或指控所涉及的索償及相關費用，向亞太軟件及閣下之服務供應商作出賠償、使其免受損害及為其抗辯。
10. 本協議取代雙方先前就軟件相關事宜所達成的任何協議、討論、或溝通，並可由亞太軟件作出修訂而毋須另行通知。
11. 服務費用。閣下同意在亞太軟件發出通知後支付港幣一元正之許可費用作為使用本軟件之代價，而亞太軟件有權就閣下按個別情況要求提供的任何提升軟件及提供支援服務而向閣下收取費用。
12. 其他事項。本協議受香港特別行政區法律規管。亞太軟件保留權利於毋須另行通知情況下，按其認為合適而對本協議的條款作出修改。
13. 如本協議的英文版本及中文版本有任何差異或衝突，一概以英文版本為準。

Authorized Signature(s) and Chop 授權簽署及蓋印

Sub-Scheme No./Policy No.: \_\_\_\_\_ Date: \_\_\_\_\_

062018